

Tempe City Council

Harry E. Mitchell Government Center
Tempe City Hall – City Council Chambers
31 East Fifth Street, Tempe, Arizona
Virtual meeting option also available
Thursday, February 6, 2025 – 6:00 PM



REGULAR COUNCIL MEETING LEGAL ACTION SUMMARY

[MEETING VIDEO](#)

1. CALL TO ORDER

MEETING BEGAN AT 6:00 P.M.

2. MOMENT OF SILENCE

3. PLEDGE OF ALLEGIANCE

4. MEETING MINUTES – Councilmember Chin

4A. Approval of City Council Meeting Minutes

NO ITEMS

4B. Acceptance of Board, Commission, and Committee Meeting Minutes

PASS

Motion to Approve Items 4B1 - 4B8 made by Councilmember Chin and seconded by Councilmember Keating

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

- 4B1.** Commission on Disability Concerns Meeting - January 13, 2025

ACCEPTED

- 4B2.** Development Review Commission Regular Meeting - January 14, 2025

ACCEPTED

- 4B3.** Development Review Commission Study Session - January 14, 2025

ACCEPTED

- 4B4.** Hearing Officer - January 7, 2025

ACCEPTED

- 4B5.** Increased Advocacy for Youth with Disabilities Council Subcommittee - December 13, 2024

ACCEPTED

- 4B6.** Neighborhood Advisory Commission and Sustainability and Resilience Commission Joint Meeting - June 5, 2024

ACCEPTED

- 4B7.** Parks, Recreation, Golf and Double Butte Cemetery Advisory Board - December 18, 2024

ACCEPTED

- 4B8.** Parks, Recreation, Golf and Double Butte Cemetery Advisory Board – Golf Subcommittee - November 20, 2024

ACCEPTED

5. REPORTS AND ANNOUNCEMENTS

5A. Mayor's Reports and Announcements

5A1. Teen Dating Violence Awareness Month Proclamation

**MAYOR WOODS READ A PROCLAMATION DECLARING FEBRUARY 2025 AS
TEEN DATING VIOLENCE AWARENESS MONTH IN TEMPE, ARIZONA.**

5B. City Manager's Reports and Announcements

NO ANNOUNCEMENTS.

6. PUBLIC APPEARANCES

SEVEN (7) INDIVIDUALS SPOKE DURING THE FIRST CALL TO THE PUBLIC.

7. CONSENT AGENDA

PASS

Motion to Approve Items 7A1 - 7A3; Items 7B1 - 7B12; and Items 7C1 - 7C2, made by Councilmember Hodge and seconded by Councilmember Adams

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

7A. Miscellaneous Items

7A1. Approve the December 2024 Report of Payments Made to be filed for audit.

Fiscal Impact: Total payments in December:
\$59,179,379.18.

APPROVED

7A2. Authorize the Fire Medical Rescue Chief or designee(s) to accept and disburse donations from Dr. Thuan Nguyen for the

purpose of providing \$500 to the annual winner of the Dr. Thuan Nguyen Life Saving Award.

Fiscal Impact: Dr. Nguyen will donate \$500 annually which will be deposited into a dedicated City cost center for the award. Sufficient budget appropriations for expenditure of these funds are authorized in the Restricted Revenue and Donations Fund (Fund 44) as part of the fiscal year 2024-25 adopted budget.

APPROVED

- 7A3.** PUBLIC HEARING ITEM Hold a public hearing to recommend the approval of a Series 12 Restaurant Liquor License for Waheguru 1313 LLC, dba Bombay House Indian Cuisine, located at 1801 East Baseline Road #104, Tempe, AZ 85283.

Fiscal Impact: No fiscal impact.

APPROVED

7B. Award of Bids/Contracts

- 7B1.** Approve the utilization of a two-year Omnia cooperative contract with Home Depot Pro Institutional for the purchase of store-wide inventory for maintenance, repair, and operation supplies.

Fiscal Impact: The total cost of this two-year contract will not exceed \$300,000. Sufficient funds have been appropriated in various funds and cost centers City-wide for anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B2.** Approve a five-year contract renewal with Galloway Asset Management, LLC for financial advisory services for

employees and retirees who participate in the City's deferred compensation and health reimbursement account programs.

Fiscal Impact: All expenses related to this contract shall be paid by plan participants (employees and retirees). The total cost will not exceed \$180,000 for the five-year renewal period. No City funds will be utilized under this contract.

APPROVED

- 7B3.** Award a three-year sole source contract renewal with Origami Risk LLC., for a risk management software solution.

Fiscal Impact: The total cost of this contract will not exceed \$185,338. Sufficient funds have been appropriated in the Software Maintenance Account, Cost Center 2621 (Risk Management), for anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B4.** Approve the utilization of one-year State of Arizona contracts with IES Communications; Technology Providers, Inc.; Logicalis, Inc.; BKW; and Immedia for audio and visual equipment and related services to install, upgrade, and maintain technology in Tempe's conference rooms and shared public spaces.

Fiscal Impact: The total cost of these contracts shall not exceed \$500,000. Sufficient funds have been appropriated in the General Governmental CIP Fund No. 6707229 (Desktop tech refresh/green) and other various departments as needed for the anticipated expenditures in the current fiscal year and next fiscal year, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B5.** Approve an increase to the contract amount with Routeware, Inc. to support and maintain a solid waste fleet management software solution.

Fiscal Impact: The total cost of this contract will increase by \$144,307 to a new not to exceed value of \$846,065. Sufficient funds have been appropriated in the Municipal Utilities Fund, Cost Center 3712 (Solid Waste) for the anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B6.** Approve a one-year contract renewal with HeartFit for Duty, LLC for Firefighter and SWAT Officer medical examinations.

Fiscal Impact: The total cost of the contract will not exceed \$250,000. Sufficient funds have been appropriated in the General Fund, Cost Centers 1512 (Employee Services and Benefits) and 2310 (Fire Administration), and Emergency Medical Transport Fund, Cost Center 2991 (Emergency Transportation Service Operations), for anticipated expenditures during the current fiscal year and next fiscal year, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B7.** Award a one-year contract to Sierra Transportation & Technologies, LLC to upgrade the City's intelligent transportation systems network infrastructure.

Fiscal Impact: The total cost of this contract shall not exceed \$430,000. Sufficient funds have been appropriated in the Engineering Capital Improvement Project No. 6911309 (ITS Network Infrastructure Upgrade), for the anticipated expenditures during the

current fiscal year and next fiscal year,
contingent upon City Council approval of the
City's annual budget.

APPROVED

- 7B8.** Award a two-year contract with three, one-year renewal options to Construction Guide LLC and Trafficade Service, LLC dba AWP Safety for the supply of barricades and warning devices.

Fiscal Impact: The total cost of this contract shall not exceed \$200,000. Sufficient funds have been appropriated in various operating cost centers and Capital Improvement Project fund cost centers for anticipated expenditures in the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B9.** Award a two-year contract with three, one-year renewal options to Pencco, Inc., for the supply of hydro fluorosilicic acid.

Fiscal Impact: The total cost of this contract shall not exceed \$200,000. Sufficient funds have been appropriated in the Water and Wastewater Fund, Cost Centers 3013 (Johnny G. Martinez W.T.P.) and 3014 (South Tempe W.T.P.), for the anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

APPROVED

- 7B10.** Ratify a change order to FPS Civil, LLC, for Project No. 3202025A - Butterfly Valve Repairs - Rural Road.

Fiscal Impact: The amount of Change Order No. 1 is a net increase of \$149,373.84, for a revised total contract of \$953,203.62. Funds to cover this

change order are appropriated for Fiscal Year 2024/25 in the Capital Improvement Project No. 3202099 – Water Transmission & Distribution System.

RATIFIED

- 7B11.** Award a professional services contract to FM Solutions Management, LLC for Project No. 6708843U – Arch Flash Study – City Facilities.

Fiscal Impact: The professional services contract amount is \$169,329.00. Funds to cover this contract and related expenses are appropriated in Fiscal Year 2024/25, and future years, contingent upon City Council approval of the City's annual budget, in the Capital Improvement Project No. 6708849 (Existing City Building Asset Management Program – Replacement & Repairs).

APPROVED

- 7B12.** Award a professional services contract to Kimley-Horn and Associates, Inc. for Project No. 6307621B – Lake Improvements – Evelyn Hallman Park and Papago Park located at Evelyn Hallman Park.

Fiscal Impact: The professional services contract amount is \$119,650.00. Funds to cover this contract and related expenses are appropriated in Fiscal Year 2024/25 and future years, contingent upon City Council approval of the City's annual budget, in the Capital Improvement Project No. 6307629 (Park Lake Improvements).

APPROVED

7C. Resolutions

- 7C1.** Adopt a resolution authorizing the City Manager or designee(s), to execute an agreement between the Maricopa County Sheriff's Office and the City of Tempe to participate in the

Detention Officer Training Academy. (Resolution No. R2025.11)

Fiscal Impact: Sufficient funds have been appropriated in General Fund – cost center 2253 (Detention) for any anticipated expenditures in fiscal year 2024-25. This agreement will continue through fiscal year 2025-26.

ADOPTED

7C2. Adopt a resolution authorizing the Mayor to execute an Intergovernmental Agreement (IGA) between the City of Tempe and the City of Scottsdale regarding Project No. 6009741– Bike Lanes/Pedestrian Improvements-Scottsdale Road from Curry Road to Continental Drive. (Resolution No. R2025.12)

Fiscal Impact: No immediate fiscal impact. Any future fiscal impact would require Council action.

ADOPTED

8. NON-CONSENT AGENDA

8A. Miscellaneous Items/Bids/Contracts/Resolutions

8A1. Approve the utilization of a one-year State of Arizona cooperative contract with Ferguson Enterprises Inc.; Paul's Ace Hardware; Voss Lighting; and WW Grainger for maintenance, repair, and operations equipment and parts.

Fiscal Impact: The total cost of the contract shall not exceed \$700,000. Sufficient funds have been appropriated in various funds and cost centers for the anticipated expenditures during the current fiscal year and next fiscal year, contingent upon City Council approval of the City's annual budget.

PASS

Motion to Approve Item 8A1 made by Councilmember Keating and seconded by Councilmember Chin

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

- 8A2.** Award a two-year contract with three, one-year renewal options to Hasa, Inc. and PVS DX, Inc., for the supply of sodium hypochlorite 12.5%.

Fiscal Impact: The total amount of this contract shall not exceed \$1,250,000. Sufficient funds have been appropriated in the Water and Wastewater Fund, Cost Centers 3013 (Johnny G. Martinez W.T.P.) and 3014 (South Tempe W.T.P.) and 3016 (Water Field Facilities), for the anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

PASS

Motion to Approve Item 8A2 made by Councilmember Hodge and seconded by Councilmember Keating

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

- 8A3.** Award a two-year contract with three, one-year renewal options to KAAM Group for the purchase of lime slurry.

Fiscal Impact: The total cost of this contract will not exceed \$1,600,000. Sufficient funds have been appropriated in the Water and Wastewater Fund, Cost Centers 3013 (Johnny G. Martinez W.T.P.) and 3014 (South Tempe W.T.P.), for anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

PASS

Motion to Approve Item 8A3 made by Councilmember Keating and seconded by Vice Mayor Garlid

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

- 8A4.** Award a two-year contract with three, one-year renewal options to Chameleon Industries Inc. and Thatcher Company of Arizona, Inc. for the supply of aluminum sulfate.

Fiscal Impact: The total cost of this contract shall not exceed \$3,000,000. Sufficient funds have been appropriated in the Water and Wastewater Fund, Cost Centers 3013 (Johnny G. Martinez W.T.P.) and 3014 (South Tempe W.T.P.), , for the anticipated expenditures during the current fiscal year and future fiscal years, contingent upon City Council approval of the City's annual budget.

PASS

Motion to Approve Item 8A4 made by Councilmember Adams and seconded by Councilmember Keating

Aye: 7; Nay: 0; Abstain: 0; Absent: 0; Recused: 0;

For: Mayor Woods, Vice Mayor Garlid, Councilmember Adams, Councilmember Amberg, Councilmember Chin, Councilmember Hodge, Councilmember Keating

8B. Ordinances and Items for Introduction and First Hearing

- 8B1.** PUBLIC HEARING ITEM Introduce and hold the first public hearing to adopt a resolution for a General Plan Land Use and Density Map Amendment from Mixed-Use Urban (65+ du/ac) to Industrial (No Density); adopt an ordinance for a Zoning Map Amendment from MU-4 to GID; and a Development Plan Review for a new approximately 117,000 square foot industrial development on 6 acres for PRIEST & 3RD, located at 1400 West 3rd Street. The applicant is Gammage & Burnham. The second and final public hearing is scheduled for February 20, 2025. (Resolution No. R2025.13; Ordinance No. O2025.05) NOTE: A General Plan Amendment requires a vote of at least two-thirds (5 of 7) of the City Council for an approval.

Fiscal Impact: While this ordinance change does not directly impact revenue, the planned development will result in collection of the standard development fees, calculated according to the approved fee structure at the time of permit issuance.

SECOND AND FINAL PUBLIC HEARING WAS SCHEDULED FOR FEBRUARY 20, 2025.

- 8B2.** PUBLIC HEARING ITEM Introduce and hold the first public hearing to adopt an ordinance authorizing the partial abandonment of a waterline easement located in a subdivision, east of McKemy Street and north of Guadalupe Road for 500 West Guadalupe Road, TEMPE DISTRICT OFFICE. The second and final public hearing is scheduled for February 20, 2025. (Ordinance No. O2025.06)

Fiscal Impact: N/A

SECOND AND FINAL PUBLIC HEARING WAS SCHEDULED FOR FEBRUARY 20, 2025.

- 8C.** Ordinances and Items for Second Hearing and Final Adoption – None

NO ITEMS

- 9. CURRENT EVENTS/COUNCIL ANNOUNCEMENTS/FUTURE AGENDA ITEMS**

- 10. PUBLIC APPEARANCES**

NO SPEAKERS

- 11. ADJOURNMENT**

MEETING ADJOURNED AT 6:48 P.M. – THE NEXT SCHEDULED REGULAR CITY COUNCIL MEETING IS FEBRUARY 20, 2025.